Showing contexts for: **divorce petition** in Rajat Gupta vs Rupali Gupta on 15 May, 2018

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13. Aggrieved by the suo moto contempt proceedings initiated by the Family Court, the husband approached the High Court for relief. The Division Bench expressed a view that recourse to suo moto contempt proceedings in the circumstances of the case, neglects the mutuality aspect provided under Section 13B of the Act. The court opined that initiation of suo moto contempt proceedings was a coercive process, foreclosing the choice that the parties have in terms of the mechanism laid down under Section 13B of the Act, which mandates a mutuality for grant of consent decree of **divorce**, split into two stages. It was in the aforesaid context that the appeal filed by the husband was allowed, the order dated 04.04.2016, passed by the learned Family Court, ordering initiation of contempt proceedings against him, was set aside and the original **divorce petition** was restored for adjudication on merits as the parties did not wish to proceed further with their agreement for mutual consent **divorce**.

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14. Questions No.(A) and (B) framed above require an interpretation of Section 13B of the Act in the context of maintainability of contempt proceedings in the event one party fails to file or appear for moving a **petition** under Section 13B(1) or a motion under Section 13B(2) of the Act or take both steps, to obtain **divorce**. We have also been called upon to express a view on the effect of furnishing an undertaking before a court, either at the two stages contemplated in Section 13B or in separate court proceedings and whether such an act will amount to waiving the rights of a party under Section 13B(2) of the Act. Question No.(C) formulated by the learned Single

Judge invites guidelines, if any, to be followed by the courts at the time of recording undertakings/agreements of the parties with respect to the two stages contemplated under Section 13B of the Act, for obtaining **divorce**. Question No. (D) juxtaposes the views expressed by the two learned Single Judges in the cases of Shikha Bhatia (supra) and Avneesh Sood (supra), wherein the defaulting spouses were held guilty of contempt of court for breaching the undertakings given by them, for obtaining **divorce** by mutual consent, against the decision of the Division Bench in the case of Dinesh Gulati (supra), wherein suo moto contempt proceedings initiated by the Family Court against the husband for breaching the undertaking recorded in his statement made jointly with the wife before the Family court, were quashed and the original **divorce petition** restored to its original position.

> "37. We are of the opinion that such conditions are statutorily provided before a **petition** for dissolution for **divorce** on mutual consent can be presented. It was not even open for the parties to waive such conditions. It is not even the case of the parties that such conditions were waived in any case. Any other view would permit the parties to marriage to present a **petition** for dissolution of marriage within days of marriage urging the court to accept a consent **petition** and dissolve the marriage merely on the ground that the parties have agreed to dissolve such a marriage. Such a view would be opposed to the very basic philosophy and principle that as far as possible, the society and the courts make all attempts to ensure that the institution of marriage sustains and is not lightly broken. It is because of these reasons that invariably provisions are made in the statute providing for a cooling-off period before which, no **petition** for dissolution of marriage can be presented, not only on mutual consent but on any other grounds as well. It is because of this reason that section 23 of the Hindu Marriage Act as well as section 9 of the Family Courts Act make detailed provisions enjoining upon the courts to make all efforts to bring about a settlement and reconciliation between the parties to such **divorce petition**." (emphasis added)

> —16. We have given due consideration to the issue involved. Under the traditional Hindu Law, as it stood prior to the statutory law on the point, marriage is a sacrament and cannot be dissolved by consent. The Act enabled the court to dissolve marriage on statutory grounds. By way of amendment in the year 1976, the concept of **divorce** by

> mutual consent was introduced. However, Section 13B(2) contains a bar to **divorce** being granted before six months of time elapsing after filing of the **divorce petition** by mutual consent. The said period was laid down to enable the parties to have a rethink so that the court grants **divorce** by mutual consent only if there is no chance for reconciliation.